



Maritime &
Coastguard
Agency

Guidance

MSN 1838 (M) Amendment 2 Maritime Labour Convention, 2006 Minimum Age

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Annex 1: Hazards, risks and ways of avoiding them



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Summary

This notice provides information about the minimum age for seafarers and the protection of young seafarers (under 18 years) working on board UK ships:

- the minimum age for working on a UK seagoing ship is 16 years of age
- those under the age of 18 years must not be assigned work which is likely to jeopardise their health and safety, unless they are fully qualified in the relevant skills or are working under supervision
- the employer must carry out a risk assessment with regard to the particular risks to young persons
- those under the age of 18 years may not work at night unless as part of recognised training
- in this context, “night” means a period of at least nine hours including the hours between midnight and 5 a.m. (local time)
- the minimum hours of rest are specified for seafarers under 18 years of age
- certain types of work should not be undertaken by young persons on the grounds that such work is likely to jeopardise their health and safety

Relationship with the Merchant Shipping (Maritime Labour Convention) (Minimum Requirements for Seafarers etc) Regulations 2014 (“the MLC

Minimum requirements regulations”):

- part 2 of the MLC Minimum requirements regulations needs to be read together with this merchant shipping notice. This notice contains details of the exceptions which apply to the night work prohibition under those regulations. Failure to comply with those obligations may be a criminal offence under the regulations
- to assist the reader, paragraph 12 identifies the regulation in the MLC Minimum requirements regulations which refers to this notice and identifies the relevant paragraph of this notice

Amendment 2 amends references and contact details.

1. Introduction

1.1 The Merchant Shipping (Maritime Labour Convention) (Minimum Requirements for Seafarers etc.) Regulations 2014 (<https://www.legislation.gov.uk/uksi/2014/1613/contents>) (the “MLC Minimum Requirements Regulations”) prohibit any person under the age of 16 years from working on a ship and any person under the age of 18 from working at night on a ship (with exceptions as set out in section 4 below). This applies whether the seafarer is employed or self-employed.

1.2 The Merchant Shipping and Fishing Vessel (Health and Safety at Work) (Employment of Young Persons) Regulations 1998 (SI 1998/2411) (<https://www.legislation.gov.uk/uksi/1998/2411/contents>) (“the Young Persons Regulations”) prohibit young persons from undertaking certain types of work which are likely to jeopardise their health and safety.

1.3 This merchant shipping notice provides information to shipowners and employers on the prohibited types of work and in addition sets out mitigating measures for other types of work which are also considered likely to jeopardise the health and safety of young persons – see paragraphs 3, 4 and 5 and Annex 1 of this merchant shipping notice. This information has been agreed following consultation with shipowners and seafarers’ representatives.

1.4 In addition, the Merchant Shipping (Maritime Labour Convention) (Health and Safety) (Amendment) Regulations 2014 amend (<https://www.legislation.gov.uk/uksi/2014/1616/contents/made>), among others, the Young Persons Regulations and the Merchant Shipping and Fishing Vessels (Health and Safety at Work) Regulations 1997 (the “General Duties” Regulations) (SI 1997/2962) so that shipowners owe a duty of

care in respect of health and safety to seafarers, in addition to the duty of care which employers owe to workers.

1.5 Together the Regulations form part of a package which implements the Maritime Labour Convention 2006.

2. Background

2.1 The Merchant Shipping and Fishing Vessels (Health and Safety at Work) Regulations 1997 (the “General Duties” Regulations) (SI 1997/2962) (as amended) require the shipowner and employers to assess the risks to seafarers’ and workers’ health and safety, irrespective of their age, as a result of the work being undertaken, and to introduce measures to either remove those risks entirely or, where that is not possible to reduce those risks as far as was reasonably practicable.

2.2 The health and safety of young persons is particularly at risk because of their general lack of awareness of risks, due to their immaturity and inexperience. The Young Persons Regulations supplement and expand the provisions of the General Duties Regulations by setting out specific measures to be taken in respect of the particular risks to young persons at work. This merchant shipping notice provides advice to shipowners/employers on their responsibilities in relation to those workers and specifies the types of work which are regarded as potentially hazardous to young persons, jeopardising their health or safety, and which should not be undertaken by them. The notice also advises on what mitigating measures should be in place to enable such work to be undertaken.

2.3 For the purpose of the MLC Minimum Requirements Regulations and the Young Persons Regulations, a young person is someone aged between 16 and 18 years of age. Persons under 16 years of age are classified as children and are prohibited from working on sea-going ships.

3. The Merchant Shipping (Maritime Labour Convention) (Minimum Requirements for Seafarers etc.) Regulations 2014

3.1 Seafarer to be of minimum age (Regulation 4):

3.1.1 No seafarer may be employed or engaged or work on board a UK sea-going ship under the age of 16 years.

3.1.2 Work experience on a ship is considered by the Maritime and Coastguard Agency to constitute work and accordingly the same limits apply. However, “work shadowing” where children observe but do not participate in any work on ships is permitted, subject to the risk assessments having been undertaken and appropriate safety measures put in place.

3.2 Young Persons on night duty (Regulation 5):

3.2.1 In addition, the MLC Minimum Requirements Regulations prohibit those under the age of 18 being employed or engaged to work at night on a ship except in specified circumstances, which are when:

- effective training of the seafarer, in accordance with established programmes and schedules would be impaired, or
- the specific nature of the duty or of a recognised training programme requires that the seafarers perform duties at night, and the work involved in those duties is specified in this notice as not being detrimental to the health and well-being of seafarers under the age of 18 (see paragraph 4.3).

3.2.2 Night means a period:

- the duration of which is not less than nine consecutive hours, and
- which starts no later than midnight and ends no earlier than 5.a.m. (local time)

3.2.3 Work carried out at night as part of the following recognised training programmes and schedules of training is not detrimental to the health and well-being of seafarers under the age of 18 (see paragraph 4.1.2 above and regulation 5(2)(b) of the MLC Minimum Requirements Regulations:

- any Deck Officer training under STCW Regulations II/1, II/2 and II/3
- any Engineer Officer training under STCW Regulations III/1, III/2 and III/3
- any Navigational watch Rating training under STCW Regulation II/4
- any Engine Room watch Rating training under STCW Regulation III/4
- any training of Ratings as AB, Deck or Engine under STCW Regulation III/5

- any training of Electro-technical Officers under STCW Regulation III/6
- any training of Electro-technical Ratings under STCW Regulation III/7
- any training of Radio personnel under STCW Regulation IV/2
- any training for alternative certification under STCW Regulation VII

3.2.4 This list of training programmes has been agreed following consultation with the shipowners' and seafarers' organisations concerned.

4. The Merchant Shipping and Fishing Vessel (Health and Safety at Work) (Employment of Young Persons) Regulations 1998

4.1 Persons on whom duties are imposed - risk assessment:

4.1.1 References in this section to duties in the Young Persons Regulations should be read as including the extension of those duties imposed on the shipowner by the MLC H&S Regulations as discussed in para 1.4.

4.1.2 As with the General Duties Regulations, the Young Persons Regulations place duties on the employer or, where the employer is not "in control of the matter" because he does not have responsibility for the operation of the ship, additionally on any person who is in control of the matter.

4.1.3 In carrying out the risk assessment required by regulation 7 of the General Duties Regulations, the Young Persons Regulations require the employer to take particular account of the risks which might arise to young persons as a result of their inexperience, lack of awareness of risks, immaturity etc. In this context the Young Persons Regulations specify the following areas for particular attention:

- the fitting out and layout of working areas
- the nature, degree and duration of exposure to physical, biological and chemical agents
- the form, range and use of work equipment and the way in which it is handled

- the organisation of processes and activities
- the extent of the health and safety training provided or to be provided to the young persons concerned
- risks from agents, processes and work listed in the schedule to the regulations

4.1.4 Annex 1 provides advice on the risks covered by the schedule and ways of avoiding or reducing them.

4.1.5 In the context of risk assessment, employers are required to ensure that no young persons are engaged in work specified below, as it is likely to jeopardise their health or safety. Such prohibited work is any work:

- which is objectively beyond their physical or psychological capacity
- involving harmful exposure to agents which are toxic, carcinogenic, cause heritable genetic damage or harm to the unborn child, or which in any other way chronically affect human health
- involving harmful exposure to radiation
- involving the risk of accidents which it may be assumed cannot be recognised or avoided by young workers owing to their insufficient attention to safety or lack of experience or training; or involving a risk to health from:
 - extreme cold or heat
 - noise
 - vibration
 - optical radiation
 - electromagnetic fields

4.1.6 Employers are also required to inform young persons of any risks to their health and safety identified in these areas. This is in addition to any information supplied under the General Duties Regulations with regard to the general risk assessment for all workers.

4.1.7 The assessment of risks to young persons under these regulations may be carried out as an integral part of the assessment process required by the General Duties Regulations, or as a separate exercise. It might be helpful to consider developing generic risk assessments for the employment of young people. These will be pertinent where young people typically undertake a series of tasks or duties. A generic risk assessment would need to be revised to address additional work not covered by the original assessment or if an

individual young person might face greater risks e.g. as a result of a medical condition.

4.1.8 Exceptions are allowed to the above restrictions and prohibition where the activity in question is indispensable for vocational training and is performed under the supervision of a competent person. This means, for example, that a trainee who is following a structured training programme and is working alongside an experienced person or under direct supervision, may, as a part of that training, carry out activities which fall within the criteria listed. This in no way detracts from the principle that the employer has a duty to ensure the health and safety of the young person at work at all times. Appropriate controls must be in place which reduces any risk to the minimum that is reasonably practicable.

4.1.9 The competent person appointed to assist the employer with health and safety under the General Duties Regulations must under those regulations be provided with any information relevant to that role. This should include being notified of any young persons employed on the ship and of any risks identified specifically in relation to them under regulation 5.

4.2 Rest periods for young persons:

4.2.1 Regulation 6 stipulates minimum daily and weekly rest periods and rest breaks for young workers.

4.2.2 The basic principle is that young persons should be provided with a minimum of 12 consecutive hours rest in every 24-hour period; and a rest period of at least 2 days in every week. Where a young person's daily working time is more than four and half hours, they should be provided with a rest break of at least 30 minutes which should be consecutive if possible.

4.2.3 It is recognised that if applied rigidly, the minimum rest requirements could restrict the employment of young persons on board ship, since they cannot be fitted into the operating schedules of many ships. There is therefore provision for the daily and weekly rest periods to be interrupted where periods of work are split up over the day or of short duration; and for the 2-day weekly rest period to be reduced to no less than 36 hours where this is justified by technical or organisational reasons.

4.2.4 In addition, derogations are built into the regulations where the young person concerned is working to a properly agreed schedule of duties. This may either be a schedule complying with the merchant shipping rules on hours of work, or another "relevant agreement". Annex 2 gives guidance on "relevant agreements". In either case, where such a schedule or other relevant agreement is in place, the rest periods above do not apply provided that schedule or agreement

provides for compensatory rest time and that the employer ensures that the hours worked do not put at risk the health and safety of the young person.

4.2.5 Time spent training constitutes working time. This includes time spent undergoing formal instruction at college or on training courses away from the ship, as well as training received on board. It does not include private study time either on board or ashore.

5. The Merchant Shipping and Fishing Vessels (Health and Safety at Work) Regulations 1997 (“The General Duties” Regulations)

5.1 Health surveillance:

5.1.1 Under the General Duties Regulations the employer is required to provide for health surveillance of workers where appropriate. Chapter 7 of the Code of Safe Working Practices for Merchant Seafarers provides guidance on when surveillance is appropriate.

5.1.2 Where the risk assessment carried out under regulation 5(2) of the General Duties Regulations identifies a risk to the health and safety of young persons, or where any young person is required to work at night (other than in exceptional circumstances), the young persons concerned are entitled to free assessment of their health and capacities before starting work and regular monitoring thereafter. This monitoring is required only so long as night work continues, unless there are other factors arising from the work which may have long term consequences to health.

5.2 General health and safety:

5.2.1 When considering young persons working on board, shipowners and employers should have regard to all current health and safety regulations produced by the Maritime and Coastguard Agency as well as the related merchant shipping notices and marine guidance notes.

5.2.2 Measures should also be taken by the shipowner and the employer to bring to the attention of young persons information concerning the prevention of accidents and the protection of their health on board ships. Such measures could include adequate instruction in courses, official accident prevention publicity intended for young persons and professional instruction and supervision of young persons.

5.2.3 Education and training of young persons both ashore and on board a ship should include guidance on the detrimental effects on their health and well-being of the abuse of alcohol and drugs and other potentially harmful substances, and the risk and concerns relating to HIV/AIDS and of other health risk related activities.

5.3 Other requirements applying to young persons:

5.3.1 Young persons' Medical certificates - any young person employed on a UK ship must be in possession of a current medical fitness certificate. This means a fitness certificate which complies with the requirements of the Merchant Shipping (Medical Certification) (Maritime Labour Convention) Regulations 2010. Such certificates are valid for 1 year for those under the age of 18. Further information is contained in Merchant Shipping Notice 1886 (M+F) and MSN 1887(M).

5.3.2 Record of young persons - the master is required to hold a record, as part of the List of Crew, of any young persons engaged as workers on the ship together with their dates of birth and date of engagement on the ship. A summary of the provisions of the Merchant Shipping and Fishing Vessels (Health and Safety at Work) (Employment of Young Persons) Regulations 1998 must be included in the folder enclosing the list of crew.

5.3.3 The MCA have published a recommended format for the List of Young Persons (<https://www.gov.uk/government/publications/list-of-young-persons>). Alternatively ship or company versions may be produced providing they replicate the wording in the MCA recommended version.

5.3.4 Further guidance for the well-being of young persons:

if, after a seafarer under the age of 18 years has served on a ship for at least four months during their first foreign-going voyage, it becomes apparent that they are unsuited to life at sea, they should be given the opportunity of being repatriated at no expense to themselves from the first suitable port of call in which there are consular services of the flag State, or the State of nationality or residence of the young seafarer.

further guidance on specific risks is available on the HSE website under 'Risks to young people at work'. (<https://www.hse.gov.uk/young-workers/employer/risks.htm>)

6. References to this notice in the Merchant Shipping (Maritime Labour

Convention) (Minimum Requirements for Seafarers etc) Regulations 2014:

6.1 Regulation 5(2)(b) (young persons on night duty). Paragraph 4 of this notice specifies work at night which is not detrimental to the health and well-being of seafarers under the age of 18.

7. More information

Seafarer Safety and Health

Maritime and Coastguard Agency
Bay 2/17
Spring Place
105 Commercial Road
Southampton
SO15 1EG

Safety and Health Enquiries 0203 817 2000

Website: www.gov.uk/mca (<https://www.gov.uk/mca>)

Please note that all addresses and telephone numbers are correct at time of publishing.

Annex 1: Hazards, risks and ways of avoiding them

The table lists the agents, processes and work which are considered likely to give rise to dangers to young people (see section 5 of this notice).

Where these are considered likely to apply to young workers on ships, advice is given (in column 2 of the table) on what risks may arise, and (in column 3 of the table) how they should be avoided.

Work objectively beyond physical or psychological capacity

List of agents, processes and work	Risk	How to avoid risk
Physical capacity: e.g. the lifting, moving or carrying of heavy loads or objects or similar work which is beyond their physical capacity.	Accidents, injuries and or musculoskeletal disorders which can occur in jobs that require repetitive or forceful movements, particularly in association with awkward posture or insufficient recovery time.	The risk assessment should take account of the physique and general health, age and experience. Training and appropriate supervision should be provided.
Work the pace of which is determined by machinery and which involves payment by results.	Young people may be more at risk as their muscle stretch may not be fully developed, and they may be less skilled in handling techniques or in pacing the work according to capacity. They may also be more subject to peer pressure to take on tasks that are too much for them or to work more quickly.	The risk assessments should take account of age and experience. Training and appropriate supervision should be provided.
Psychological capacity	Although there will large individual differences in the psychological capacity of young people based on differences in training, experience, skills, personality and attitudes in the vast majority of jobs there is no difference in the kind of mental and social skills used by young people and adults.	The risk assessment should focus on critical tasks which rely on skill, experience and an understanding of the task requirements. Training and effective supervision should be provided,

List of agents, processes and work	Risk	How to avoid risk
		particularly where the young person might be using machinery with exposed dangerous parts.

Work involving harmful exposure to agents which are toxic, carcinogenic, cause heritable genetic damage, or harm to the unborn child, or which in any other way chronically affect human health

List of agents, processes and work	Risk	How to avoid risk
Physical agents: Work in high pressure atmospheres	There are three types of health problem which can be caused by working in compressed air: Barotrauma: where a change in surrounding pressure causes direct damage to those air-containing cavities in the body which are directly connected with the surrounding atmosphere, principally the ears, sinuses and lungs. Decompression illness: which mostly occurs as a condition involving pains around the joints, or, more rarely, as a serious,	On the UKCS, divers must have an HSE certificate of competence or equivalent, be fit and must have a valid certificate of medical fitness to dive. There is no minimum age limit for divers. However, it is unusual for anyone below school leaving age to undergo diver training and no one under 18 is accepted for work by employers offshore.

List of agents, processes and work	Risk	How to avoid risk
	potentially life-threatening condition which may affect the central nervous system, the heart or the lungs. Dysbaric osteonecrosis: which is a long-term condition damaging the long bones, hip or shoulder joints. Young people's bones are not fully developed and may be at greater risk of long-term harm.	
Noise	There is no evidence that young people face greater risk of damaged hearing from exposure to noise than other workers.	Reference documents: Merchant Shipping and Fishing Vessels (Control of Noise at Work) Regulations 2007 and Marine Guidance Note 658 (M+F) Amendment 1. Compliance with the regulations will protect the hearing of most young people. Ensure that a competent person supervises the wearing of ear protection to ensure it is worn properly, during exposure to loud noise.
Hand-arm vibration	There is no evidence that young people face greater risk of developing hand-arm vibration syndrome (vibration white finger) following exposure to hand-arm vibration than other workers. However there is an increased risk of the onset of	Reference documents: the Merchant Shipping and Fishing Vessels (Control of Vibration at Work) Regulations 2007 and Marine Guidance Note 353 (M+F) Amendment 1.

List of agents, processes and work	Risk	How to avoid risk
	non-occupational Raynaud's disease during adolescence which can give similar symptoms to vibration white-finger. Young persons with non-occupational Raynaud's disease should not be exposed to hand-arm vibration.	Action should be taken to protect young persons where exposure exceeds an acceleration of 2.5 m/s ² . Employers will need to consider a programme to control the significant risks identified in the risk assessment including identification of hazardous equipment/tasks; limiting exposure to 1 m/s ² normalised over 8 hours (A(8)), by reducing either time of exposure and/or vibration level; providing competent supervision; and health surveillance.
Whole body vibration	Regular exposure to low frequency vibration, or to shocks, for example working in fast rescue craft, may be associated with back pain and other spinal disorders. Younger workers may be at increased risk of damage to the spine as the strength of the muscles is still developing and the bones do not fully mature until around the age of 25.	Reference documents: Merchant Shipping and Fishing Vessels (Control of Vibration at Work) Regulations 2007; Marine Guidance Notes MGN 353 (M+F) Amendment 1 and MGN 436 (M+F) Amendment 2. Action should be taken to protect young persons when exposure exceeds an acceleration of 0.5 m/s². Employers will need to consider a programme to control the significant risks identified in the risk assessment including: - identification of

**List of
agents,
processes
and work**

Risk

How to avoid risk

hazardous
equipment/tasks

- limiting exposure by
reducing the time and/or
level

- producing information
and training on how to
minimise the risk

- health monitoring.

List of agents, processes and work	Risk	How to avoid risk
Biological agents (micro-organisms)	Despite physical and psychological immaturity, young persons are no more likely to contract infections from biological agents than adults. Like any other workers they may be at greater risk if they suffer from any other disease, are taking medication or are pregnant.	Reference documents: the Merchant Shipping and Fishing Vessels (Health and Safety at Work) (Biological Agents) Regulations 2010 and Merchant Shipping Notice MSN 1889 Amendment 2 (M+F). Precautions should be taken to protect all workers against risk of infection at work and of acquiring an allergy to certain microbes, regardless of their age or state of health. Following a risk assessment approach, control measures can be as simple as maintaining high standards of hygiene i.e. hand washing or use of gloves. Where available, vaccination should be offered as a supplement to procedural or physical controls.
Chemical agents: Very toxic, toxic, harmful, corrosive and irritant substances	Young people are not physiologically at any greater risk from exposure to such substances than anyone else. However, young people may lack awareness of hazards and risks to their health.	Reference documents: Merchant Shipping and Fishing Vessels (Health and Safety at Work) (Chemical Agents) Regulations 2010 as amended and Merchant Shipping Notice MSN 1888 (M+F) Amendment 2. Chapter 21 of the Code of Safe Working

List of agents, processes and work	Risk	How to avoid risk
		Practices for Merchant Seafarers. Employers should assess the health risks to young people, arising from work with such substances, and where appropriate use a safer substance or change the process to avoid its use. Where information is supplied with the substance, for example under regulations on the classification, labelling and packaging of hazardous substances (CLP) or Control of Substances Hazardous to Health Regulations (COSHH), particular attention should be paid to such information. Workers should be given any relevant information affecting their health and safety, instruction and training in the safe handling and use of the substance, and be provided with adequate supervision within a safe system of work.
Carcinogenic substances	Some substances (carcinogens) may cause cancer. They need special consideration because of that property – they have no	Reference documents: Merchant Shipping and Fishing Vessels (Health and Safety at Work) (Carcinogens and

List of agents, processes and work	Risk	How to avoid risk
	special effect on young people.	Mutagens) Regulations 2007 as amended and Marine Guidance Note MGN 624 (M+F). Many of these substances can be identified from the label or safety data sheet (where supplied) for the substance, which will say "May cause cancer". Exposure is to be reduced to as low a level as reasonably practicable.
Mutagens	Some substances may impair people's ability to have children or may damage the unborn child.	Reference document: MSN 1890 (M+F) Amendment 2 New and Expectant Mothers. Exposure is to be reduced to as low a level as reasonably practicable.
Substances causing allergic reactions	Some substances can cause allergic reactions in people. This may give them dermatitis or asthma. These substances do not affect young people any differently from adults.	HSE guidance on preventing asthma at work and dermatitis, gives practical advice on preventing risk to all workers. General guidance on hazardous substances is contained in Chapter 21 of the Code of Safe Working Practices for Merchant Seafarers.
Lead and lead compounds	Young people are not physiologically at any greater risk from exposure to lead	See above on chemical agents.

**List of
agents,
processes
and work**

Risk

How to avoid risk

and its compounds than anyone else.

Lead and its inorganic compounds are known to produce diverse biological effects in humans depending on the exposure level. These range from minor biochemical changes in the blood, to severe irreversible or life threatening disruption of body processes, in particular the nervous system and the kidneys. There are also concerns about the effects of lead on the quality of semen and on the unborn child.

The toxic effects of lead alkyls are primarily neurological or psychiatric. Symptoms include agitation, insomnia, dizziness, tremors and delirium, which can progress to mania, coma and death. These symptoms are accompanied by nausea, vomiting and abdominal pain. The actual risk can only be determined following a risk assessment of the particular circumstances under which there is exposure at the place of work. However, young people may not appreciate the dangers to their health or they may not understand or follow instructions properly because of their immaturity.

Lead may be found in some paints. Guidance on precautions to be taken while painting or cleaning or rubbing down painted surfaces, are contained in Chapter 25 of the Code of Safe Working Practices for Merchant Seafarers.

Employers should ensure that they adequately control the exposure of young people to lead and its compounds. Special attention should be paid to the provision of information, instruction and training, and to the provision of adequate supervision within a safe system of work.

List of agents, processes and work	Risk	How to avoid risk
Asbestos	Young people are not physiologically at any greater risk from exposure to asbestos than anyone else. However, young people may not be aware of the hazards and risk to their health, or follow instructions properly because of their immaturity. Exposure to asbestos fibres causes three serious diseases; - Mesothelioma (a cancer of the lung lining) - Lung cancer (indistinguishable from cancers caused by other agents) - Asbestosis (scarring of the lung tissue) There are no cures for asbestos related diseases. These diseases can take many years to appear after the period of exposure (long latency). This latency effect means that an exposure occurring at a young age may be a higher risk than the same exposure later in life, simply because a young persons is more likely to survive until the time when the disease is most likely to emerge.	Reference documents: Merchant Shipping and Fishing Vessels (Health and Safety at Work) (Asbestos) Regulations 2010 as amended and MGN 429(M+F) and MGN 493 (M+F). Exposure to asbestos should be avoided wherever possible, and where it cannot be avoided precautions should be taken to reduce it to as low a level as possible. Advice is contained in MGN 429 (M+F) and in Chapter 21 of the Code of Safe Working Practices for Merchant Seafarers. Workers should be given any relevant information affecting their health and safety, instruction and training in the safe handling and use of the substance, and be provided with adequate supervision within a safe system of work.

Work involving harmful exposure to radiation

List of agents, processes and work	Risk	How to avoid risk
Ionising radiation	The risk of developing cancer and hereditary defects from exposure to ionising radiation, which increases slightly for young people, is controlled by setting statutory annual dose limits. According to the HSE website, the main dose limits which relate to the whole body dose are the most important elements in relation to cancer risk. The limits for young people per calendar year are: - 6 millisieverts (mSv) for trainees under 18 years (30% of the adult limit). Trainees (including students) are defined as being aged 16 years or above receiving instruction or training involving work with ionising radiation. - 1 mSv for employees below 18 years who are not trainees (the same limit as for the general public).	Regard should be had to the provisions of MGN 197 Amendment 1 and MGN 451(M+F). In general seafarers may not be exposed to ionising radiation at sea although it is possible that such exposure might occur when X-ray equipment is being used.
Non-ionising radiation electromagnetic radiation	Optical radiation: There is no evidence that young people face greater risk of skin and eye damage than	Reference documents: Merchant Shipping and Fishing Vessels (Health and Safety at Work)

List of agents, processes and work	Risk	How to avoid risk
	other workers.	(Artificial Optical Radiation) Regulations 2010 and MGN 428(M+F) Amendment 1. Non-binding EU guidance on artificial optical radiation at work.
	Electromagnetic fields and waves: Exposure within current recommendations is not known to cause ill health to workers of any age. Extreme overexposure to radio-frequency radiation could cause harm by raising body temperature.	Seafarers working in hot climates are advised to reduce their exposure to the sun, following advice in Chapter 3.7 of the Code of Safe Working Practices for Merchant Seafarers. If it is necessary to work in direct sunlight, appropriate clothing should be worn to protect both head and body. Reference document: Merchant Shipping and Fishing Vessels (Health and Safety at Work) (Electromagnetic Fields) Regulations 2016 and MGN 559 (M+F). Exposure to electric and magnetic fields should not exceed the restrictions on human exposure published by the UK Health Security Agency.

Work involving the risk of accidents which it may be assumed cannot be recognised or avoided by young workers owing to their insufficient attention to safety or lack of experience or training

List of agents, processes and work	Risk	How to avoid risk
Manufacture and handling of devices, fireworks or other objects containing explosives		It may be necessary to explain the safe handling of pyrotechnics such as distress flares, rockets, line throwing devices, floating smokes, life raft signals and man overboard markers.
Work with fierce or poisonous animals	Unlikely to be relevant to work on ships.	
Animal slaughtering on an industrial scale	Unlikely to be relevant to work on ships.	
Work involving the handling of equipment for the production, storage or application of compressed, liquefied or dissolved gases		
Work involving the operation of high risk lifting equipment or acting as	ILO Convention 152 Article 38. There may be substantial risks associated with the	Reference documents: Merchant Shipping and Fishing Vessels (Provision and Use of Work Equipment) Regulations

List of agents, processes and work	Risk	How to avoid risk
signallers to operators of such equipment	use of lifting accessories, for example during 'slinging' and employers need to assess whether such work is appropriate for young people.	2006; Merchant Shipping and Fishing Vessels (Lifting Operations and Lifting Equipment) Regulations 2006 and the respective Marine Guidance Notes MGN 331 Amendment 1 and MGN 332 Amendment 1; Code of Safe Working Practices for Merchant Seafarers; Chapter 19. Young people may use high-risk lifting machinery under training as long as they are adequately supervised. They should also be supervised after training if considered not sufficiently mature.
Working involving the operation of power machinery or tools	Young people (under 18 years) should not be allowed to use power machinery or tools unless they have the necessary maturity and competence which includes having completed appropriate training.	Reference documents: Code of Safe Working Practices for Merchant Seafarers, Chapter 18 and Chapter 20. Young people may operate power equipment and tools during training providing they are sufficiently mature and are adequately supervised. They should also be properly supervised after training until they reach the appropriate level of competence and can work safely unsupervised.
Entry into boilers, tanks	Risk from depleted oxygen levels, toxic	Reference documents: Merchant Shipping and

List of agents, processes and work	Risk	How to avoid risk
and cofferdams	gases, risk of explosion.	Fishing Vessels (Entry into Enclosed Spaces) Regulations 2022; MGN 659 (M+F); Chapter 15 of the Code of Safe Working Practices for Merchant Seafarers. Young persons may do this work under training and with adequate supervision.
Handling mooring or tow lines or anchoring equipment	Risk being struck by or striking another person when lines are thrown; risk from parting of ropes and cables under tension.	Reference documents: Code of Safe Working Practices for Merchant Seafarers Chapter 26 MGN 592 (M+F) which deals with Mooring, Towing or Hauling Equipment On All Vessels – Safe Installation and Safe Operation.
Flammable liquids	Accidental spills can cause fires or explosions. Flammable liquids should be used only for their intended purposes: using them for other purposes may lead to fires or explosions	It may be necessary to explain basics of flammability; people need to know how to detect leaking gas and what to do in the event of a gas leak.
Gas cylinders	There is no evidence that young people face greater physical risks from a release of stored energy than other workers. Leaking gas from cylinders may cause fires or explosions.	It may be necessary to explain the basics of flammability; people need to know how to detect leaking gas and what to do in the event of a gas leak. Gas cylinders need to be

List of agents, processes and work	Risk	How to avoid risk
	Physical damage to cylinders may cause leaks. Heavy cylinders may cause physical injury if not properly handled.	properly handled, both to avoid the danger of fire or explosion, and the risk of physical injury to the worker, e.g. crushed toes.
	Application of heat to gas cylinders may cause them to burst possibly resulting in “shrapnel” type explosion. Alternatively the contents may be vented through a pressure release valve resulting in fire or explosion.	Gas cylinders need to be safely and used away from direct sources of heat. Guidance is contained in Chapter 24, Section 9 and 10 of the Code of Safe Working Practices for Merchant Seafarers.
Work with tanks etc containing chemical agents	This applies particularly to work on chemical tankers or any work involving handling or working near to substantial quantities of substances hazardous to health. There is a risk of fire or explosion where there is an explosive atmosphere or where spills or leaks of flammable substances are readily foreseeable. There is also a risk of ignition of a flammable liquid which has splashed or soaked into clothing.	The risk assessment should consider issues such as: - how to ensure that young people will follow emergency procedures properly if containment is lost; and -how to ensure that young people behave responsibly when working near quantities of chemicals that have the potential to cause serious harm: e.g. making young workers aware of the dangers of introducing ignition sources in these situations.
Work on or near refrigeration plant	Refrigeration gases may be toxic and flammable.	The risks should be explained. Only to work following instruction and under

List of agents, processes and work	Risk	How to avoid risk
		supervision by a competent person and with safety measures in place, including indicator alarms, with control panel outside the space. In case of any risk of exposure to refrigerant liquid, goggles, rubber or pvc gloves, and other personal protective equipment to be worn.
Handling or taking charge of ship's boats		

Working in exposed positions

List of agents, processes and work	Risk	How to avoid risk
Working at height, rigging	Risk of falling or dropping items on workers below through lack of concentration or lack of experience.	Only to work under supervision. Chapter 17 of the Code of Safe Working Practices for Merchant Seafarers. MGN 410 (M+F) Amendment 1 gives general guidance on working at height.
Working at height or over the side	Risk from falling from aloft or over the ship's side or into the water.	Only to work under supervision. Chapter 17 of the Code of Safe Working Practices for Merchant Seafarers. MGN 410 (M+F) Amendment 1 gives general guidance on working at height. MSN 1870(M+F) Amendment 3 on

List of agents, processes and work	Risk	How to avoid risk
		the Merchant Shipping and Fishing Vessels (Personal Protective Equipment) Regulations 1999.
Working on deck in heavy weather	Risk of injury or of getting washed over the ship's side.	Reference documents: Code of Safe Working Practices for Merchant Seafarers, section 11.12. MSN 1870(M+F) Amendment 3 on the Merchant Shipping and Fishing Vessels (Personal Protective Equipment) Regulations 1999
Work involving risk of structural collapse	May be relevant for cargo stacking and movement of ships' stores.	Cargo should be stowed and secured in accordance with the Cargo Securing Manual and where work is to be carried out near a tall stack of cargo or stores, the stack should be secured to prevent it falling. Young workers should only do such work if properly trained or if they are under supervision of a trained person.

Operating hazardous equipment

List of agents, processes and work	Risk	How to avoid risk
Servicing of electrical equipment	Risk of electric shock or other injury if equipment not properly isolated from a power source.	Regard should be had to the provisions of the Merchant Shipping and Fishing Vessels (Provision and Use of Equipment)

List of agents, processes and work	Risk	How to avoid risk
		Regulations 2006 and MGN 331(M+F) Amendment 1.
Work involving high-voltage electrical hazards	The risk is one of electric shock, burns or electrocution. There is no evidence that young people face greater physical risk from electricity than other workers.	Reference documents: MGN 452(M). As with adults, young people should not undertake work involving electricity unless they have the necessary knowledge and/or experience to prevent danger or injury; or are under an appropriate level of supervision having regard to the nature of the work.
Cleaning of catering machinery	Risk of injury from moving or sharp parts	Regard should be had to the provisions of the Merchant Shipping and Fishing Vessels (Provision and Use of Equipment) Regulations 2006 and MGN 331 (M+F) Amendment 1. (See the Code of Safe Working Practices for Merchant Seafarers (CSWP) section 23.7: unless properly supervised young persons must not clean a machine with dangerous parts)
Use of ship's laundry equipment	See above on risk from electrical equipment – noting additional risk of damp environment.	Young persons must be fully trained and if appropriate closely supervised by a competent person (see Code of Safe Working Practices for Merchant Seafarers; section 18.30).

Work in which there is a risk to health from extreme cold or heat

List of agents, processes and work	Risk	How to avoid risk
Extremes of cold or heat	Exposure to extreme cold carries risks to workers of all ages. These are principally hypothermia and local cold injury (frostnip/frostbite). People of all ages vary in their ability to tolerate cold conditions. Exposure to extreme heat carries risks for workers of all ages. These include collapse due to heat exhaustion or potentially fatal heat stroke. Protective clothing may exacerbate the problem by preventing the body from losing heat normally. There are no special considerations for young people – their response to work in hot conditions will depend on physical fitness, physique and past experience of hot conditions, which will be variable.	Depending on the findings of the risk assessment, the provision of appropriate protective clothing and control of periods of exposure will help to minimise the risk. Any intended exposure to heat must be carefully assessed and the risks can be minimised by measures such as introducing suitable work patterns, prior medical assessment of workers and proper supervision of the work. Guidance on the precautions for work in hot climates is given in section 3.7 of the Code of Safe Working Practices for Merchant Seafarers.

Annex 2: Relevant agreements

A relevant agreement is defined in the Merchant Shipping and Fishing Vessels (Health and Safety at Work) (Employment of Young Persons) Regulations 1998 as follows:

“relevant agreement”, in relation to a worker, means a workforce agreement which applies to him, any provision of a collective agreement which forms part of a contract between him and his employer, or any other agreement in writing which is legally enforceable as between the worker and his employer.

“workforce agreement”, means an agreement between an employer and workers employed by him or their representatives in respect of which the conditions set out in the Schedule to the Working Time Regulations 1998 are satisfied.

The following guidance describes workforce agreements as defined in the schedule.

Workforce agreements

The regulations provide a mechanism for employers to agree working time arrangements with workers’ representatives, who do not have any terms or conditions set by a collective agreement, and whether or not a schedule of hours of work is required under the Merchant Shipping (Maritime Labour Convention) (Hours of Work) Regulations 2018 (regulation 7) (“the Regulations”). In the regulations, this is called a workforce agreement. This allows employers to agree on how to use the flexibility provided by the Regulations and clarify other matters. A workforce agreement may apply to the whole of the workforce or a group of workers within it. Where it is to apply to a group of workers, the group must share a workplace, function or organisational unit within a business.

As a first step, employers should determine at what level they wish to make an agreement and then take steps to provide for representatives of the workers to be elected to negotiate it.

To arrange the election of workforce representatives, the employer should:

- decide on the number of representatives – this will depend on the size of the workforce or the group to be represented; it is suggested that the

number be sufficiently large to be representative of the workers concerned, though not so large as to make negotiations unwieldy;

- ensure so far as is reasonably practicable that the elections must be conducted by secret ballot; in practice it would be rare for this not to be possible;
- ensure that the votes are counted fairly and accurately; the employer may wish to consider enlisting an independent body to verify this;
- allow each worker a vote for each representative to be elected to represent them; and
- ensure that candidates are members of the workforce on the date of the election, or, in the case of a group, a member of the group to whom the agreement is to apply.

No member of the workforce should unreasonably be excluded from standing as a candidate.

To be valid, a workforce agreement must:

- be in writing
- have been circulated in draft to all workers to whom it applies together with guidance to assist their understanding of it;
- be signed, before it comes into effect, either:
 - by all the representatives of the members of the workforce or group of workers; or
 - if there are 20 workers or fewer employed by a company, either by all the representatives of the workforce or by a majority of the workforce;
- have effect for no more than five years.

It will be possible for an elected representative to be elected for other purposes, for example as a safety representative under the MS and FV (Health and Safety at Work) Regulations 1997. However, it would have to be made clear to those voting that the representatives were being elected for both purposes.



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